

CV-26-003818 ASSALI, JANNETTE vs REED, JAMES – Defendant's Motion to Strike Claims for Punitive Damages from Plaintiff's Complaint - GRANTED, with leave to amend.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code § 3294 and must include specific factual allegations showing that defendant's conduct was oppressive, fraudulent, or malicious to support the claim. (Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority) (2022) 83 Cal.App.5th 1137, 1192–1193.) Here, the Court notes Plaintiff's inclusion of specific factual allegations regarding the defendants' knowledge of the dog's history of multiple prior attacks, which appear sufficient to support a claim for punitive damages herein. However, Plaintiff has failed to allege the proper statutory elements to seek such damages. Specifically, the Court notes that Plaintiff alleges only that the defendants' conduct was reckless in connection with the subject incident, and recklessness alone is insufficient to support a claim for punitive damages. (Taylor v. Superior Court of Los Angeles (1979) 24 Cal.3d 890, 895.) Plaintiff shall submit her amended pleading within 20 days. The following are the tentative rulings for cases calendared before Judge David Hood in Department 24:

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